

TENTATIVE RULING

Case: UCD J Street Owner LLC v. Walker
Case No. CV2026-0308

Hearing Date: March 27, 2026 **Department Two** **1:30 p.m.**

Defendant Doris Walker’s motion for leave to file second amended cross-complaint is **DENIED**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.) First, defendant failed to file a proof of service at least five court days before the hearing, showing that her motion was timely served on plaintiff UCD J Street Owner LLC. (Cal. Rules of Court, rules 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Second, as to the merits of defendant’s motion, “neither a cross-complaint nor a counterclaim may be properly filed in a suit for unlawful detention of property, even though the alleged cause therein contained grows out of the subject-matter involved in the original suit.” (*Lakeside Park Asso. v. Keithly* (1941) 43 Cal.App.2d 418, 422.) As a cross-complaint cannot be maintained in this action, the Court denies the motion to amend defendant’s cross-complaint. (*Ibid.*)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.